Health and Safety Executive

IMPROVEMENT NOTICE

Health and Safety at Work etc. Act 1974, Sections 21, 23 and 24

Notice number	IN/WM/2026/00231
Served on	Pennington Industries Limited (company number 02641887)
Of	Pennington House, Shepherd Street, Dudley DY1 4QT
Issued by	Karen Whitlow, one of HM Inspectors of Health and Safety
Date of service	5 February 2026
Date by which to comply	9 April 2026

1. I, the above-named inspector, am of the opinion that you are contravening / have contravened the following statutory provisions in circumstances that make it likely that the contravention will continue or be repeated:

Section 2(1) of the Health and Safety at Work etc. Act 1974; and regulation 5 of the Provision and Use of Work Equipment Regulations 1998 (maintenance of work equipment).

2. The reasons for my said opinion are:

The arrangements for the planned maintenance and periodic function-testing of interlocking guards on machinery at the premises are not adequate to ensure that such guards are maintained in efficient working order. In particular, the scheduled function test of the interlock on machine PT-DB-07 due in or about October 2025 was not carried out and the omission was not identified or escalated, with the last recorded test being on 9 March 2025. This is symptomatic of a system that does not reliably ensure that safety-critical guarding is maintained in an effective state.

3. I hereby require you to remedy the said contraventions, or as the case may be the matters occasioning them, by the date stated above, and I direct that you take the following measures:

Put in place and operate adequate arrangements to ensure that all safety-critical guards and interlocks on machinery at the premises are subject to scheduled function testing at suitable intervals, that the completion of such testing is recorded, and that any overdue test is identified and escalated to a responsible person so that the equipment is not used until the test is satisfactorily completed.

Signature: **K. Whitlow**

Karen Whitlow — HM Inspector of Health and Safety

An inspector has power to issue an Improvement Notice under section 21 of the Act. Failure to comply with an Improvement Notice within the period specified is an offence under section 33 of the Act. You have a right of appeal to an employment tribunal within 21 days of the date of service of this Notice; bringing an appeal within that period suspends the operation of the Notice until the appeal is determined or withdrawn.